



Notification Waiver Determination

BUSS Queensland – Additional interest in Duxton Vineyards

Acquisition	BUSS (Queensland) Pty Ltd (BUSSQ Super), via its pooled superannuation trust (BUSSQ PST), applied for a notification waiver in respect of its proposed acquisition of an additional 25% shareholding in Duxton Vineyards Pty Ltd (Duxton Vineyards), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 June 2026

Parties to the Acquisition	The acquirer, BUSSQ Super, is a profit-for-members superannuation fund, focused on the building industry in Queensland. BUSSQ Super's investment portfolio comprises a range of assets across the following classes: Australian and International shares, property, fixed income, infrastructure, private equity (including agriculture), and private credit. BUSSQ Super's investments are made through BUSSQ PST, of which BUSSQ Super is the sole unitholder. The target, Duxton Vineyards, is an integrated wine enterprise located in the Mildura and Sunraysia region of New South Wales. Duxton Vineyards and its subsidiaries operate in the wine growing and manufacturing industry. The investment in Duxton Vineyards is part of BUSSQ Super's private equity (including agriculture) asset class. BUSSQ PST holds 59% of the shares in Duxton Vineyards, and the acquisition is an issue of new shares which will increase the shareholding to 84%. The investment is held by BNP Paribas Nominees Pty Ltd as nominee for BUSSQ PST's custodian.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: BUSSQ Super is already a majority shareholder in Duxton Vineyards, and the Acquisition would increase BUSSQ Super's existing majority shareholding, and

	b. there is a small horizontal overlap between BUSSQ Super's other investments and Duxton Vineyards. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**